

PLE5050: INTERLOCUTORY ADVOCACY AND INTERVIEWING

Effective Term

Semester A 2025/26

Part I Course Overview

Course Title

Interlocutory Advocacy and Interviewing

Subject Code

PLE - Professional Legal Education

Course Number

5050

Academic Unit

School of Law (FL)

College/School

School of Law (FL)

Course Duration

Non-standard Duration

Other Course Duration

Semester A (5 weeks)

Credit Units

2

Level

P5, P6 - Postgraduate Degree

Medium of Instruction

English

Medium of Assessment

English

Prerequisites

Nil

Precursors

Nil

Equivalent Courses

Nil

Exclusive Courses

Nil

Part II Course Details

Abstract

This part of the course aims to prepare students for the practice of advocacy, interviewing and advising.

Course Intended Learning Outcomes (CILOs)

CILOs		Weighting (if app.)	DEC-A1	DEC-A2	DEC-A3
1	Communicate orally with clients in clear, precise and appropriate language		x		
2	Discover by research, any new case law in the area of interlocutory applications				x
3	Display mastery of courtroom etiquette, practice and procedure		x		
4	Conduct simple interlocutory advocacy			x	
5	Prepare and deliver an oral argument				x

A1: Attitude

Develop an attitude of discovery/innovation/creativity, as demonstrated by students possessing a strong sense of curiosity, asking questions actively, challenging assumptions or engaging in inquiry together with teachers.

A2: Ability

Develop the ability/skill needed to discover/innovate/create, as demonstrated by students possessing critical thinking skills to assess ideas, acquiring research skills, synthesizing knowledge across disciplines or applying academic knowledge to real-life problems.

A3: Accomplishments

Demonstrate accomplishment of discovery/innovation/creativity through producing /constructing creative works/new artefacts, effective solutions to real-life problems or new processes.

Learning and Teaching Activities (LTAs)

LTAs		Brief Description	CILO No.	Hours/week (if applicable)
1	Large Group – Interviewing and Advising	Students will engage in Large Groups to observe and discuss the core principles and best practices of interviewing and advising in legal matters in Hong Kong.	1	

2	Large Group – Interlocutory Advocacy	Students will engage in Large Groups to observe and discuss in relation to the types of interlocutory matters in Hong Kong, the core principles of: - conducting of legal research - compliance with court room etiquette - delivery of an interlocutory oral argument - drafting and reviewing supporting documentation; such as: * skeleton arguments * chronologies; and * dramatis personae.	2, 3, 4, 5	
3	Pre-reading – Interviewing and Advising	Students will read a Desk Book and course materials before the Large Group to familiarize themselves with the core principles and best practices of interviewing and advising in legal matters in Hong Kong.	1	
4	Large Group – Interlocutory Advocacy	Students will engage in Large Groups to observe and discuss the core principles and best practices, in relation to the types of interlocutory matters in Hong Kong, relating to: - conducting of legal research - compliance with court room etiquette - delivery of an oral argument - drafting and reviewing supporting documentation, being: * skeleton arguments; * chronologies; * lists of authorities; and * dramatis personae.	3, 4, 5	

5	Guided learning – Interlocutory Advocacy	Drafting of supporting documentation for interlocutory matters in Hong Kong (prepared before a small group) being: - skeleton arguments; - chronologies; - lists of authorities; and - dramatis personae.	2	
6	Small groups – Interviewing and Advising	Students will conduct interviewing and advising simulations and obtain peer feedback (both oral and written) in relation to their performances, as well as engage in formative self-evaluations. Furthermore, students will engage in group discussions, guided by the tutor, to further critically analyze the necessary core principles and best practices which arose in the tutorial.	1	
7	Small groups – Interlocutory Advocacy	Students will conduct simulated practice-based role plays of applications in areas of interlocutory trial advocacy in Hong Kong and consider oral and written feedback on their performances.	3, 4, 5	
8	Video-review sessions	Students in allocated pairs, will watch and discuss a video of their performances in a summary judgment application in Hong Kong.	3, 4, 5	
9	Court visit report	Students are required to attend a court in Hong Kong for 4.5 hours and provide a report by a stipulated date which encompasses matters relating to court room advocacy in Hong Kong.	3	

Assessment Tasks / Activities (ATs)

	ATs	CILO No.	Weighting (%)	Remarks ("- " for nil entry)	Allow Use of GenAI?
1	Interviewing – Satisfactory completion of designated tasks set out below: This is a self-assessment and review of students' written self-assessment forms in relation to an interview and subsequent advice; and a peer review of the students' interview and subsequent advice. This self-assessment and peer review does not count toward the final grade but satisfactory participation in these activities are a formative criterion for satisfactorily completing the Course.	1	0	The use of Generative AI tools is not allowed.	No
2	Interlocutory Advocacy – 100% This is assessed in the Order 14 Assessment	2, 4, 5	100	The use of Generative AI tools is not allowed.	No

3	Interlocutory Advocacy/court visit report – satisfactory completion of designated tasks. Students, as part of their formative assessment, are required to submit a court report on a stipulated date in which they will need to reflect on their visits as a criterion for satisfactorily completing this course.	3	0	The use of Generative AI tools is not allowed.	No
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Continuous Assessment (%)

100

Minimum Continuous Assessment Passing Requirement (%)

50

Assessment Rubrics (AR)**Assessment Task**

Order 14 assessment

Criterion

Students need to achieve a mark of 50% overall in the Order 14 assessment in the Course

Excellent

(A+, A, A-) Students should be able to reach a standard ranging from very competent to outstanding across the following skills:

- Discover by research, case law in the area of interlocutory application
- Develop a mastery of basic courtroom etiquette and procedure
- Prepare and deliver an oral argument in an Order 14 matter.

Good

(B+, B, B-) Students should be able to reach a good standard ranging from competent to outstanding across the following skills:

- Discover by research, case law in the area of interlocutory application
- Develop a mastery of basic courtroom etiquette and procedure
- Prepare and deliver an oral argument in an Order 14 matter.

Fair

(C+, C, C-*) Students should be able to reach a competent standard ranging from competent to very good across the following skills:

- Discover by research, case law in the area of interlocutory application
- Develop a mastery of basic courtroom etiquette and procedure
- Prepare and deliver an oral argument in an Order 14 matter.

Marginal

(D*)

Failure

(F) Students have failed to reach a competent standard outstanding across the following skills:

- Discover by research, case law in the area of interlocutory application
- Develop a mastery of basic courtroom etiquette and procedure
- Prepare and deliver an oral argument in an Order 14 matter.

Additional Information for AR

*Note: The University's grades C- and D are not used in the PCLL.

Part III Other Information

Keyword Syllabus

- Interviewing and conferencing
- Case analysis
- Theory of the case
- Affidavits/affirmations
- Dramatis personae
- Chronology
- Skeleton arguments
- Lists of authorities
- Court etiquette and procedure
- Advocacy techniques
- Interlocutory applications
- Costs issues
- Evidentiary issues
- Professional conduct issues

Reading List

Compulsory Readings

Title	
1	These include the Desk Book and all the Course Materials for this course. The other recommended and required references and reading for each topic will be found in the Desk Book and in the Course Materials for each topic.
2	DVD Resources: J Burke & A Ngan - "Are You Talking to Me?" DVD on Interviewing and Advising (available in Media Resources Collection Room in CityUHK Library on 5 hours loan)

Additional Readings

Title	
1	Bilingual Laws Information System - Hong Kong Ordinances and Subsidiary Legislation (http://www.legislation.gov.hk/eng/home.htm)
2	Lexis and/or Westlaw - available through “Electronic Resources” section of the Run Run Shaw Library website
3	Hong Kong Civil Procedure, (The Hong Kong White Book) Volumes 1, 2 (2020)
4	Camille Cameron and Elsa Kelly, Principles and Practice of Civil Procedure in Hong Kong. (2nd Edition. Hong Kong: Thomson. Sweet and Maxwell Asia 2009)
5	Allan Leung and Douglas Clark, Civil Litigation in Hong Kong (Fifth Edition. Hong Kong: Sweet and Maxwell 2017)
6	Dave Lau, Civil Procedure in Hong Kong. A Guide to the Main Principles (Fourth Edition Hong Kong: Sweet and Maxwell August 2017)
7	M Wilkinson and others, Advocacy & The Litigation Process in Hong Kong, (3rd edition. Hong Kong: Butterworths 2007)